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INTERNATIONAL ACADEMIC RESEARCH COMPETITION 2026

RESEARCH PROPOSAL

A Subject of Responsibility or a Shield for Evading It?

Allocating Responsibility Between Humans and AI and the Legitimacy of AI Legal Personhood

Who Should Be Held Responsible: Humans or AI, and Should AI Be Granted Legal Personhood?

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Research Topic: Artificial Intelligence · Law · Ethics · Public Policy

1.Research Problem and Originality: Artificial intelligence currently supports or directly executes decisions in areas such as credit assessment, autonomous driving, and criminal justice. When these systems cause harm, assigning liability becomes complicated because developers, providers, deployers, and operating institutions are all involved, and the opaque internal processes of the models further obscure specific fault. A proposed solution has been to grant artificial intelligence limited legal personhood. For instance, a 2017 resolution by the European Parliament discussed a potential electronic personhood status for highly autonomous robots [9]. Conversely, the recent European Union Artificial Intelligence Act assigns legal obligations to the human and organizational entities that provide and deploy these systems rather than to the technology itself [11]. The primary concern is not the degree to which artificial intelligence mimics human characteristics, but determining which legal framework most effectively identifies responsible parties, mitigates risk, and ensures remedies for those affected. This analysis moves the discussion from abstract legal theory to practical institutional utility by investigating whether conferring legal personhood on artificial intelligence clarifies accountability or inadvertently facilitates responsibility laundering.

2.Prior Research: Kurki conceptualizes legal personhood as a variable set of rights, duties, and powers, establishing a framework for granting artificial intelligence partial legal status. Chesterman separates the theoretical feasibility of this status from its desirability as policy, noting that existing arguments fail to demonstrate a clear need to extend legal personhood to artificial intelligence. Bryson and colleagues argue that synthetic personhood might instead obscure human liability and impede mechanisms for legal redress. Furthermore, Geon-woo Kim questions the presumed link between philosophical and legal personhood common to both proponents and critics, suggesting that legal recognition is an independent policy decision. Conversely, Yong-ho Kim evaluates the practical utility of legal personhood in addressing tort liability gaps caused by the growing autonomy of these systems.

3.Research Questions and Hypotheses: The central question is whether recognizing limited legal personhood for artificial intelligence improves responsibility attribution, risk prevention, and victim redress, or whether it merely dilutes the liability of developers, deployers, and operators. This prompts three specific inquiries. The first asks which institutional framework maximizes accountability, comparing an independent AI personhood model, a distributed fault liability approach, and a system based on corporate strict liability, insurance, and non delegable human oversight. The second examines how these frameworks affect the identification of liable parties and redress outcomes in specific scenarios, such as chatbot misinformation, fatal autonomous vehicle collisions, and algorithm assisted criminal justice decisions. Finally, if AI receives limited functional status, it is necessary to determine the minimum legal safeguards required to prevent the waiver of joint liability for human and corporate actors. Based on these questions, this study proposes two hypotheses. First, granting AI legal personhood without requiring independent assets or non exculpatory joint liability increases the risk of responsibility laundering. Second, for high risk AI applications, a liability framework that integrates corporate strict liability, mandatory insurance, a compensation fund, transparent auditing, and meaningful

human control offers the most effective approach for securing victim compensation and deterring future harm.

4.Proposed Methodology: This study employs a qualitative approach combining comparative legal analysis with policy case studies.

1) Data Construction: The analytical corpus will be purposively sampled from theoretical literature concerning legal personhood and responsibility gaps [1]-[7], regulatory and risk management documents from the European Union and the United States [8]-[11], and publicly accessible judicial decisions and accident investigation reports [12]-[14]. The study does not involve human subjects or the collection of personal data.

2) Comparative Models: This study evaluates three distinct liability frameworks for artificial intelligence. The first model proposes granting independent or limited legal personhood to AI systems. The second framework utilizes a distributed approach to allocate fault among developers, deployers, and operators. The third model addresses high-risk contexts by combining corporate strict liability with mandatory insurance, a compensation fund, and a non-delegable duty of human oversight.

3) Case Analysis: Three principal cases are examined. Moffatt v. Air Canada addresses a service provider's responsibility for misinformation supplied by a chatbot [12]. The NTSB report on the Uber autonomous-driving crash identifies physical harm arising from the combination of driver fault, deficient corporate safety culture, and inadequate supervision [13]. State v. Loomis is examined as a case requiring independent human judgment rather than treating an algorithmic score as a determinative basis in public decision-making [14].

4) Coding and Evaluation: Cases and models were coded from 0 to 2 across seven criteria evaluating control, profit allocation, harm prevention, decision traceability, compensation assets, sanction responsiveness, and responsibility laundering risk. Scores required a justification memo, with the laundering criterion reverse-scored.

■ METHODS: Research Design and Data Scope

Case Selection

Case selection was based on four criteria. First, an artificial intelligence or algorithmic system must have played a substantive role in generating, recommending, classifying, or supporting a decision. Second, there had to be an identifiable harm or rights violation, alongside at least two identifiable actors involved in the system development, provision, deployment, operation, or supervision. Third, an official source was required to provide a concrete basis for evaluating responsibility, control, prevention, transparency, or redress. Fourth, the analysis needed to be reproducible via a case number, neutral citation, report number, or a similar official identifier.

Three cases fulfilled these requirements. The first case, Moffatt v Air Canada, involves an airline chatbot that provided a consumer with inaccurate information regarding retroactive bereavement fares, resulting in financial loss. The second case examines the Uber ATG Tempe crash, where a test vehicle operating on a developmental automated driving system fatally struck a pedestrian. The National Transportation Safety Board attributed this incident to the safety driver inattention,

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inadequate risk assessment and ineffective supervision by Uber ATG, and a lack of safeguards against automation overreliance. The third case, State v Loomis, centers on the use of the COMPAS risk assessment algorithm during criminal sentencing. The court allowed the tool use with specific limitations and warnings, explicitly ruling that the algorithmic score could not serve as the sole determinant for incarceration or sentence severity.

ID	Case	Domain	Primary Impact	Key Responsible Actors
C01	Moffatt v. Air Canada	Consumer services / chatbot	Economic loss	Corporate provider
C02	Uber ATG Tempe crash	Autonomous driving / road safety	Fatality / physical safety	Operator / developer company / regulator
C03	State v. Loomis	Criminal justice / risk assessment	Liberty / procedural rights	Court / tool provider

Table 1. Cases and Responsibility Structures

Comparative Liability Models

The responsibility models were operationalized based on their substantive institutional safeguards rather than their formal legal designations. Baseline Model A0 treats AI as a distinct responsible entity but lacks independent assets or mandatory insurance, while excluding non-exculpatory joint liability for human and corporate actors. Model A+ confers limited legal status for specific transactional or registration functions, pairing this status with independent assets or insurance, joint liability for humans and organizations, and mandatory audit and logging mechanisms. Model B relies on distributed fault liability, dividing responsibility among developers, providers, deployers, operators, and users based on duty breaches and causal contributions. Model C allocates primary responsibility to the entity controlling and benefiting from high-risk deployments, combining this with insurance or compensation funds, logging, external audits, and non-delegable human oversight. For public sector applications where private law strict liability does not directly translate, functional equivalence is established through non-delegable duties of explanation and verification required of courts and public institutions.

Model	Name	Core Design
A0	Independent AI Personhood	AI treated as a separate responsible entity; no assets, insurance, or non-exculpatory joint liability
A+	Safeguarded Limited Status	Limited status + assets/insurance + joint liability + logs/audits
B	Distributed Fault Liability	Allocate fault across development, provision, deployment, and operation according to causal contribution

Model	Name	Core Design
C	Risk-Based Organizational Responsibility Package	Primary responsibility on the organization with control/benefit + insurance/fund + logs/audits + human oversight

Table 2. Operational Definitions of the Comparative Liability Models

Codebook and Scoring

Criteria C1 through C7 serve as operational indicators rather than naturally occurring statistical variables. They translate legal, ethical, and governance principles regarding AI accountability into standardized questions. These questions incorporate the traceability and reasons responsiveness dimensions of meaningful human control discussed in reference 7, the govern, measure, and manage structure of the NIST AI Risk Management Framework in reference 10, and the record keeping, risk management, and human oversight obligations of the EU AI Act in reference 11. Models are evaluated based on their ability to address these criteria.

Code	Evaluation Criterion	Core Question
C1	Substantive control	Who actually holds the authority and duty to design, deploy, operate, suspend, and modify the system?
C2	Allocation of benefits and profits	Are the economic or administrative benefits of AI use connected to the costs of responsibility?
C3	Foreseeability and prevention capacity	Are duties of ex ante risk assessment, monitoring, suspension, and updating assigned to the actor able to prevent harm?
C4	Decision-path traceability	Can inputs, model versions, outputs, approvals, modifications, and human interventions be reconstructed after the event?
C5	Victim-compensation assets	Do victims have practical access to assets, insurance, funds, and a viable claims pathway?
C6	Responsiveness to sanctions	Can damages, regulation, or corrective orders act directly on the responsible party and induce behavioral change?
C7	Resistance to responsibility laundering	Do the rules prevent actors with control and benefit from escaping responsibility by labeling the event an "AI error"?

Table 3. Accountability Evaluation Codebook

The evaluation scores are not derived solely from an automated aggregation formula. Researchers first review primary materials, including judicial decisions, accident investigation reports, statutes, and policy documents, to identify supporting evidence. Each criterion then receives a score of 0, 1, 2, or not applicable based on predefined anchors. Quantitative aggregation and conversion occur only after all individual criteria have been systematically assessed.

Value	Meaning
0	The responsibility mechanism is effectively absent, or responsibility is assigned only to AI, resulting in very low substantive accountability
1	A relevant mechanism exists but is fragmented, partial, or incomplete
2	The responsible actor and its duties are clear, and prevention, traceability, compensation, or correction is likely to function in practice
NA	The available evidence is insufficient for a defensible judgment

Table 4. Scoring Anchors for 0, 1, 2, and NA

Reliability and Output: Analytical consistency is assessed via delayed dataset recoding and sensitivity analyses of criterion weights. The resulting AI Responsibility Allocation Test assigns primary liability to entities retaining control and mitigation capacity ensuring AI legal status cannot sever human accountability.

Expected Results: Granting legal personhood to artificial intelligence may serve specific administrative functions like facilitating transactions or registrations. However, without independent assets, mandatory insurance, and joint liability structures involving human operators or corporate entities, this approach risks diffusing accountability rather than ensuring adequate redress. For high-risk applications, a more robust alternative is an integrated liability model. This framework involves staged responsibility across developers, deployers, and operators, alongside strict corporate liability. It should be supported by mandatory insurance or compensation funds, immutable system logs, independent audits, and sustained human oversight. This configuration offers a more practical mechanism for preventing accidents and securing compensation.

Potential Limitations: The purposive selection of three cases limits the extent to which these findings represent all industries. Legal and institutional variations across Canada, the United States, and the European Union, combined with rapid regulatory shifts, further restrict generalizability. Because normative judgment may influence the 0-to-2 scoring process, methodological transparency should be enhanced by publishing the codebook, recoding the data, and conducting sensitivity analyses.

Implementation Plan: The research is structured over an eight week timeline. During the first two weeks the primary literature, legal texts, and case studies will be finalized and the initial codebook developed. The first round of coding will take place in weeks three and four, followed by a recoding phase in week five to ensure reliability. Week six is allocated for model comparison and sensitivity analysis. In week seven the proposed framework will be evaluated to establish the final conclusions. The eighth week will focus on manuscript revision and the preparation of presentation materials. As the analysis relies entirely on publicly accessible documents, the study does not require specialized equipment or significant funding.

Post-program Plan: Future work will incorporate cases from Korea, the EU, and North America while utilizing expert interviews to validate the proposed responsibility-allocation criteria

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